

IN THE CIRCUIT COURT OF THE TWENTIETH JUDICIAL CIRCUIT
IN AND FOR LEE COUNTY, FLORIDA
CIVIL DIVISION

EMILY M. CASEY,

Plaintiff,

CASE NO.:

v.

KRISTOF KNAEPS and
EAN HOLDINGS, LLC., a
Foreign Limited Liability Company

Defendants.

_____ /

COMPLAINT

COMES NOW, Plaintiff, EMILY M. CASEY, by and through undersigned counsel, and
sues Defendants, KRISTOF KNAEPS and EAN HOLDINGS, LLC, a Foreign Limited Liability
Company, and alleges as follows:

JURISDICTION AND VENUE

1. This is an action for damages in excess of \$50,001.00, exclusive of attorneys' fees, interest and costs, and Plaintiff hereby demands a trial by jury; accordingly, although, to file this complaint, undersigned counsel is being required by order of the Supreme Court of Florida to contemporaneously complete a civil cover sheet with a dollar figure as an estimated amount of claim for data collection and clerical processing purposes only, the full monetary value of the damages suffered by Plaintiff is yet to be determined and will be decided in a verdict by the jury that judges the facts of this action in compliance with Article I, Section 21, Florida Constitution. At all times material hereto, Plaintiff, EMILY M. CASEY ("CASEY") was and is a resident of Lee County, FL.

2. At all times material hereto, Defendant KRISTOF KNAEPS (“KNAEPS”) was and is a resident of Belgium.

3. At all times material hereto, Defendant EAN HOLDINGS, LLC., was and is a Foreign Limited Liability Company that operates vehicles on the public roads and conducting business in the State of Florida, and more specifically, Lee County, FL.

4. The action stems from a motor vehicle accident that occurred on or about April 6, 2022 in Lee County, FL.

5. Venue is proper in Lee County, FL.

GENERAL ALLEGATIONS

6. At all times material hereto, Defendant KNAEPS was the operator of a 2020 gray Mitsubishi Outlander Utility motor vehicle (VIN: JA4AD3A37LZ044011).

7. At all times material hereto, Defendant EAN was the owner of the aforementioned 2020 gray Mitsubishi Outlander Utility motor vehicle.

8. At all times material hereto, said 2020 Mitsubishi Outlander motor vehicle was rented by Defendant, KNAEPS.

9. At all times material hereto, Plaintiff was the driver of a 2013 gray Mazda 3 motor vehicle.

10. On or about April 6, 2022, Defendant KNAEPS negligently operated the motor vehicle so that it collided with the motor vehicle Plaintiff was operating.

11. At all times material hereto, Plaintiff was a properly restrained passenger and did not contribute in any way to the crash or her injuries.

COUNT I – NEGLIGENCE **(KNAEPS)**

12. Plaintiff incorporates paragraphs 1-11, above, as fully set forth herein.

13. Defendant KNAEPS owed a duty to Plaintiff to operate and/or maintain his motor vehicle in a safe manner.

14. Defendant KNAEPS breached said duty when he negligently operated and/or maintained the motor vehicle so that it collided with Plaintiff's motor vehicle.

15. As direct and proximate result, Plaintiff suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, inconvenience, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money, and aggravation of a previously existing condition. The losses are either permanent or continuing and Plaintiff will continue to suffer losses in the future. Plaintiff has sustained a permanent injury within a reasonable degree of medical probability.

WHEREFORE, Plaintiff demands judgment for damages and costs against Defendant, KNAEPS, and a trial by jury on all issues so triable.

COUNT II – VICARIOUS LIABILITY-OWNERSHIP
(EAN HOLDINGS LLC, a Foreign Limited Liability Company)

16. Plaintiff incorporates paragraphs 1-15 above, as fully set forth herein.

17. At all times material hereto, Defendant KNAEPS operated the aforementioned motor vehicle with either the express or implied knowledge, permission, and/or consent of its owner, Defendant EAN.

18. Under the doctrine of vicarious liability, Defendant, EAN, is liable for the negligence of Defendant, KNAEPS, because Defendant, KNAEPS, operated the motor vehicle owned, lease, and/or rented by Defendant, EAN, with Defendant, EAN's, either express or implied knowledge, permission, and/or consent.

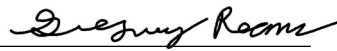
19. As a direct and proximate result, Plaintiff suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, inconvenience, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of

earnings, loss of ability to earn money and aggravation of a previously existing condition. The losses are either permanent or continuing and Plaintiff will continue to suffer losses in the future. Plaintiff has sustained a permanent injury within a reasonable degree of medical probability.

WHEREFORE, Plaintiff demands judgment for damages and costs against Defendant, EAN, and a trial by jury on all issues so triable.

DATED this 21st day of March 2023.

FARAH & FARAH, P.A.



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